

M² SQUARE METER SARL

RC : 155495 | ICE :

00358034100023 Patente :

APPT 15 IMM 1245313804 AV. ALLAL EL FASSI — MARRAKECH —
MAROC

RESIDENTIAL LEASE AGREEMENT — 1

YEAR

Primary residential use — Moroccan law

Between the
undersigned:

The Landlord:
Full name / Company name:

ID Card / Passport / RC:

Full address:

Phone:

Email address:

hereinafter referred to as "the

Landlord",
The Tenant(s):

Main tenant's full name:

ID Card / Passport:

Current address:

Phone:

Email address:

Profession:

If applicable, co-tenant(s):

Full name / ID Card:

hereinafter referred to as "the

Tenant",
Intermediary:

The company M² SQUARE METER SARL, real estate agency registered under number RC 155495 and ICE 00358034100023, represented by its co-managers, hereinafter referred to as "the Agency",

It has been agreed and established as follows.

ARTICLE 1 — DESCRIPTION OF THE RENTAL PROPERTY

The Landlord leases to the Tenant, who accepts, the property designated as follows:

Type of property (apartment, villa, house, studio...):

Full property address:

Floor / Lot number:

Approximate area (m²) : _____ **Number of rooms :** _____

Outbuildings (cellar, parking, terrace...):

Land title number / Cadastral ref.:

The property is leased for primary residential use exclusively, to the exclusion of any commercial, artisanal or professional use, unless prior written consent of the Landlord.

ARTICLE 2 — LEASE TERM

This lease is concluded for a period of one (1) year, starting from:

Commencement date: _____ **Expiry date:** _____

Upon expiry of the one (1) year term, the lease shall be tacitly renewed for a new period of one (1) year, unless notice is given by either party by registered letter with acknowledgment of receipt at least one (1) month before the expiry date. The rent applicable to the renewal shall be determined under the conditions provided by Moroccan legislation.

ARTICLE 3 — RENT AND CHARGES

This lease is granted and accepted for a monthly rent set at:

Monthly rent excluding charges: _____ **MAD (** _____ **dirhams)**

This rent is payable in advance, on the _____ of each month, by bank transfer to the Landlord's account or by any other means agreed between the parties.

In addition to the rent, the Tenant assumes, directly and in their own name, the subscriptions and consumption of water, electricity, gas, internet and telephone, as well as the housing tax, condominium charges legally incumbent on them as occupant, and routine maintenance charges.

Rent revision: the rent is fixed for the one (1) year term of this lease. Any revision may only occur upon renewal, under the conditions provided by applicable Moroccan legislation.

ARTICLE 4 — SECURITY DEPOSIT

Upon signing this lease, the Tenant pays to the Landlord, or to the Agency mandated to collect it, a security deposit corresponding to:

Security deposit amount:

This security deposit may in no case be applied by the Tenant towards payment of the last month's rent. It shall be returned to the Tenant within thirty (30) days following the effective return of keys and the signing of the exit inventory, after deduction, if applicable, of amounts owed to the Landlord for unpaid rent, unpaid rental charges or repairs resulting from damage noted during the exit inventory and attributable to the Tenant.

ARTICLE 5 — AGENCY FEES

As remuneration for its brokerage and lease file preparation services, the fees of MÉ SQUARE METER Agency are set as follows:

Fees payable by the Landlord:

Fees payable by the Tenant:

These fees are due and payable on the date of signing of this lease. They are not refundable in case of early termination of the lease, whatever the cause.

ARTICLE 6 — TENANT'S OBLIGATIONS

The Tenant undertakes, in particular,

- to:
- Occupy the leased property peacefully and as a good steward, as primary and exclusive residence, without being able to change its purpose;**
 - Pay the rent and charges at the agreed terms, without offset or deduction, except as provided by law;**
 - Maintain the property and carry out the rental repairs incumbent on them, as defined by customs and applicable Moroccan legislation;**
 - Not to carry out any transformation, fitting out or modification work on the property without prior written authorization from the Landlord;**
 - Allow the Landlord or their representatives access to the property for urgent or necessary work, after prior agreement on schedules except in emergencies;**
 - Not to sublet the property, in whole or in part, nor assign this lease without prior written consent of the Landlord;**
 - and maintain a valid multi-risk home insurance covering their rental liability, and provide the certificate annually to the Landlord;**
 - Return the property in a good state of cleanliness and maintenance, consistent with the entry inventory, at the end of the lease.**

ARTICLE 7 — LANDLORD'S OBLIGATIONS

The Landlord undertakes, in particular to:

Deliver to the Tenant a decent dwelling, in good condition of use and repair, meeting minimum habitability standards;

Ensure the Tenant's peaceful enjoyment of the premises for the entire duration of the lease;

Assume responsibility for major repairs and work falling under their responsibility, as defined by customs and applicable Moroccan legislation;

Return the security deposit within the timeframe and under the conditions provided in Article 4 of the law;

Inform the Tenant of any plan to sell the property within the legally prescribed timeframes.

ARTICLE 8 — INVENTORY

A joint entry inventory shall be established and signed by both parties or their duly mandated representatives, on the date of key handover. This inventory shall form an integral part of this lease and is attached as Annex 1.

A joint exit inventory shall be established under the same conditions on the date of key return. In the absence of an exit inventory signed by both parties, the property shall be presumed to have been returned in good condition, unless contrary evidence is provided by the Landlord.

Any damage noted during the exit inventory, exceeding normal wear and tear and resulting from the conduct of the Tenant or their agents, may be charged against the security deposit or give rise to an action for damages.

ARTICLE 9 — TERMINATION AND NOTICE

The Tenant may terminate this lease at the end of its term by giving notice to the Landlord by registered letter with acknowledgment of receipt, at least one (1) month before the expiry date. In the absence of notice within this period, the lease shall be renewed under the conditions provided in Article 2.

The Tenant may also terminate the lease before its term subject to observing a two (2) month notice period notified to the Landlord by registered letter with acknowledgment of receipt, accompanied, if applicable, by payment of a lump sum indemnity of one (1) month's gross rent as a penalty clause, unless otherwise agreed amicably.

The Landlord may only terminate the lease before its term in the cases strictly provided for by Moroccan law applicable to residential leases.

In case of termination for breach by the Tenant of their obligations, notably non-payment of rent or charges, unauthorized subletting, serious neighborhood disturbances or use of the property for unauthorized purposes, the Landlord may, after a formal notice remaining without effect for fifteen (15) days, initiate any appropriate legal proceedings and claim, in addition to accrued rent, an occupation indemnity until effective vacation of the premises.

ARTICLE 10 — MISCELLANEOUS CLAUSES

10.1 — Pets

The introduction of pets into the leased property is subject to the prior written consent of the Landlord. In case of consent, the Tenant shall remain solely responsible for any damage caused by their animals.

10.2 — Landlord's Work

The Landlord reserves the right to carry out improvement, maintenance or urgent renovation work, subject to informing the Tenant with reasonable notice except in emergencies. Such work shall not give rise to any rent reduction if its duration does not exceed forty (40) days.

10.3 — Insurance

The Tenant undertakes to insure the leased property for rental risks (fire, water damage, explosion) and to maintain this insurance for the entire duration of the lease. They shall provide the Landlord with an annual

insurance certificate. In case of observed lack of insurance not remedied within fifteen (15) days following formal notice, the Landlord may terminate the lease.

10.4 — Joint

Liability. In case of multiple tenants, they shall be jointly and severally liable for all obligations arising from this lease.

10.5 — Jurisdiction Clause

This lease is subject to Moroccan law, notably the Dahir carrying Law No. 1-80-311 of 25 December 1980 relating to rents of buildings for residential use and subsequent texts. Any dispute relating to its execution or termination shall be submitted, after attempt at amicable settlement, to the jurisdiction of the Court of First Instance of the place where the property is situated.

The parties declare having become acquainted with the entirety of this contract and its annexes, understanding the scope and effects, and accepting them without reservation.

Done at _____, on _____

In as many original copies as there are parties, each acknowledging receipt of their copy.

The Landlord (Read and approved)	The Tenant(s) (Read and approved)	MÉ SQUARE METER — Intermediary
Signature:	Signature:	Signature and stamp:

M² SQUARE METER SARL

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APPT 15 IMM 12 LOT SIN AV. ALLAL EL FASSI — MARRAKECH — MAROC

ANNEX — ENTRY INVENTORY**Residential Lease 1****Year****Property address:****Entry date:****Time:****Water meter reading:** _____ **Electricity meter reading:** _____

	Element	Condition (Entry)	Condition (Exit)
Entrance / Hall	Floor coverings		
	Wall coverings		
	Front door / Lock		
Living room	Floor coverings		
	Wall / ceiling coverings		
	Woodwork / windows		
Bedroom(s)	Floor coverings		
	Wall coverings		
	Shutters / doors		
Kitchen	Floor / wall coverings		
	Equipment (cupboard, sink...)		
Bathroom	Floor / wall coverings		
	Sanitary facilities (WC, shower, sink)		
	Fittings		
Common areas / Terrace	General condition		
Keys	Number and type		
handed over Observations			

Done at _____, on _____

The Landlord (Read and approved) Signature:	The Tenant(s) (Read and approved) Signature:	M² SQUARE METER — Intermediary Signature and stamp:
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